

Equipment: Notifier Fire Alarm Panel and Johnson Controls' Metasys BACnet DDC

**JUSTIFICATION REVIEW DOCUMENT
FAR PART 6 JUSTIFICATION AND APPROVAL FOR OTHER THAN
FULL AND OPEN COMPETITION**

Project: UHHZ143000 Renovate Building 59D / Notifier Fire Alarm Panel and Johnson Controls' Metasys BACnet DDC.

Control No: SAS 25-03

Authority: 10 U.S.C. 3204 (a)(1) as implemented by FAR Part 6.302-1 (c) Only one responsible source and no other supplies or services will satisfy agency requirements, Application for brand-name descriptions.

Amount: Notifier Fire Alarm Panel [REDACTED]
Johnson Controls' Metasys BACnet DDC [REDACTED]

PREPARED BY: CONTRACT SPECIALIST	[REDACTED]
CONTRACTING OFFICER	
TECHNICAL	

Reviews: I have reviewed this J&A and find the justification adequate to support other than full and open competition.

DISTRICT SMALL BUSINESS SPECIALIST	[REDACTED]
PROJECT MANAGER	
ASSISTANT DISTRICT COUNSEL	
CONTRACTING OFFICER	

**FAR Part 6 Justification and Approval for Other than
Full and Open Competition**

1. Contracting Agency: U.S. Army Corps of Engineers (USACE), Savannah District, 100 W. Oglethorpe Ave, Savannah, GA 31401

2. Description of the Action: USACE Savannah District is requesting approval for a new firm fixed price contract which will incorporate the specific brand name product(s), Notifier Fire Alarm Panel and Johnson Controls' Metasys BACnet Direct Digital Control (DDC), as sole source components. The government projects award for FY 2025, working capital funding will be used. A formal acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement (DFARS) 207.103(d)(i)(b).

3. Description of Supplies/Services: USACE will execute a construction project for the renovation of building 59 de-paint facility at Robins AFB, GA. As part of the construction, a new fire alarm panel will be installed in this facility. To support the Air Force initiative of achieving economy and efficiency, this J&A supports the specification of Notifier as the Fire Alarm Panel to be incorporated into construction. In support of this requirement, USACE obtained a properly approved standardization memo from the Air Force to support the designated brand name of Fire Alarm Panel manufacturer that is required at this Air Force installation.

Johnson Controls' Metasys BACnet DDC is the existing system within Building 59. The renovation will only encompass the de-paint portion of the facility. The new DDC controls within the renovated portion of the building will be required to tie-in and communicate with the existing building system.

Items	Description - Location
Notifier Fire Alarm Panel	Building 59 De-Paint Facility
Johnson Controls' Metasys BACnet DDC	Building 59 De-Paint Facility

4. Authority Cited: The statutory authority permitting acquisition of the requirement by other than full and open competition is 10 U.S.C. 3204 (a)(1) as implemented by Federal Acquisition Regulation (FAR) 6.302-1(c) Only one responsible source and no other supplies or services will satisfy agency requirements; Application for brand-name descriptions.

5. Reason for Authority Cited: As described in FAR 6.302-1(c), an acquisition or portion of an acquisition that uses a brand-name description or other purchase description to specify a particular brand-name, product, or feature of a product, peculiar to one manufacturer does not provide for full and open competition, regardless of the number of sources solicited; and shall be justified and approved in accordance with FAR 6.303 and 6.304.

a. Background:

In 2021, the Air Force established standardization requirements for the replacement of Fire Alarm equipment across all Air Force installations. The Air Force Senior Procurement Executive approved a Class J&A on 17 December 2021, that requires Air Force procurements to utilize specific makes of Fire Alarm equipment in their requirements. The Air Force Class J&A is valued at \$14.8M and states that "the Air Force is required to use the "brand name exception" to CICA because the nature of the acquisition as a strategic

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vehicle for Category Management (CM) requires a pre-planned brand name approach to acquiring facility fire alarm panels." The J&A speaks to significant estimated cost savings in training expenses and efficiency improvements in mission performance that are projected to be achieved through fire alarm panel standardization.

b. Justification:

- (1) In order to satisfy UFC 4-021-01 requirement of a Mass Notification System, a seamlessly compatible system must be installed. The Notifier Fire Alarm System is used throughout Robins AFB. Due to compatibility requirements, only the Notifier System compatible with B59 existing DDC Johnson Controls Metasys BACnet can guarantee delivery of emergency messages to all persons located on the base. This proprietary system is not compatible with other DDC systems. For items as important to life, health, and safety as the Fire Alarm and Mass Notification Systems there is no room for error when these products are called upon to be operational.
- (2) Implementation of this J&A for Notifier fire alarm control panels and the Johnson Controls' Metasys BACnet will comply with the current Robins AFB standard of having the same fire alarm panel manufacturer. Utilizing the approved manufacturer Notifier throughout Robins AFB eliminates inefficiencies and duplication in cost by reducing the need to train USAF fire alarm panel technicians on multiple manufacturers' systems, reducing training requirements. Standardization also allows fire alarm panel repair and programming to be done in-house as the primary option versus contracting out for these services. Approval will also increase mission performance efficiencies by streamlining and specializing Civil Engineering (CE) maintainer's training.

c. Alternatives:

The Notifier/Monaco Fire Alarm control panel and Mass Notification System is currently being used at Robins AFB Fire Department Dispatch is not compatible with equipment from other manufacturers therefore no alternatives are available. Only the Notifier Onyx will fully incorporate into the Base-wide Monaco Mass Notification System. There is no longer any third party gateway software that will allow other control panels to incorporate into the post-wide Monaco Mass Notification System.

d. Impact:

- (1) Notifier Fire Alarm Panel: If this J&A is not approved, this Air Force MILCON construction contract will not be executed in accordance with the Air Force CM program. USACE will be unable to implement the Air Force's standardization program. If the fire alarm equipment is not standardized, the Air Force will not be able to realize the efficiencies and reduction of costs that have been targeted in the category management analysis. Anticipated advantages include reduced training costs for Air Force maintenance personnel, efficiencies in obtaining and storing spare parts, and decreased disruption to mission by rapid resolution of any fire alarm panel failures.
- (2) Johnson Controls' Metasys BACnet DDC: If this J&A is not approved, the DDC system within the entire building would have to be replaced rather than only the portion within the de-paint facility which is being renovated. Impacts would include additional

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disruptions to the mission due to closing the paint portion of the facility for replacing the DDC system and additional cost for replacing the full building system.

6. Efforts to Obtain Competition: The Contracting Officer shall post a redacted version of the J & A as required by FAR 5.201 (a)(6) in the solicitation.

- a. **Effective Competition:** Effective competition will be achieved by issuing the solicitation for the construction of the facility competitively. Though the brand name component requirement for Notifier Alarm Control Panels will be stipulated in the solicitation, this is a very small part of a much larger construction project. Market research annotated in paragraph 8 has shown that there are multiple vendors in the geographic area that can provide both the parts required.
- b. **Subcontracting Competition:** Multiple suppliers are available to compete to provide Notifier fire control panels at a subcontracting level. It is expected that competition will exist for suppliers. See paragraph 8.

7. Actions to Increase Competition: IAW FAR Part 5.2, Synopses of Proposed Contract Action, a pre-solicitation notice will be posted to the GPE (www.sam.gov). A sources sought notice was also posted to the GPE. 3 contractors expressed interest in competing on this requirement.

8. Market Research: Market research was conducted to determine the impact on competition and to determine the number of possible authorized vendors for the Notifier within the geographic area of the project. A search of the manufacture's website detailed 33 authorized distributors in the Robins AFB area. There are multiple sources, therefore it is reasonable to expect that a fair and reasonable price will result from adequate competition at the subcontracting level. The equipment is installed based on drawings and specifications by the electricians and installers of fire alarms and fire suppression systems utilizing both electrical and network connections. There is a certification for bi-directional Amplifier (BDA) and Distributed Antenna System (DAS) but those are national standards for Mass Notification and Fire Alarm Systems and not specific to Notifier, the radios used by firefighter/first responder personnel within buildings to maintain radio contact with each other, commanders, and dispatch.

9. Interested Sources: Subcontracting will be available for these systems. This J&A will be posted with the issuance of the solicitation in accordance with FAR 5.102(a)(6).

10. Other Factors: Reasonable efforts were made to retrieve other facts from computer records, contract files, and other sources to support the use of other than full and open competition as follows:

A. Procurement history:

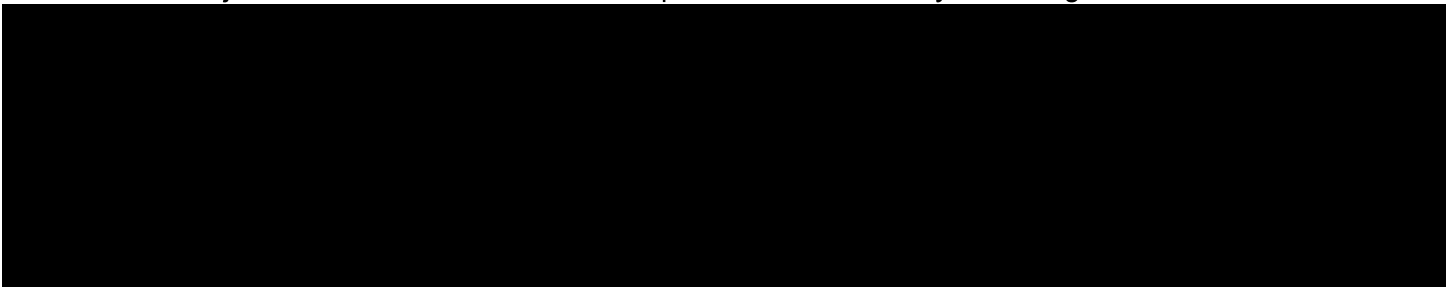
- 1) Contract numbers and dates of the last several contracts for these same requirements: W912HN-23-C-3003 Construct Breakroom & Admin Area in Bldg. 125, Robins AFB, GA. Awarded 24 August 2023
- 2) The competitive status of these actions: Total small business set-aside.

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- 3) Authority previously cited if less than full and open competition was used: FAR 6.302-1(a)(2)
- 4) If a justification was prepared to support the procurement made before this one, a summary of the contents of paragraph 5 of the justification for that procurement and an explanation of the results: Notifier is the authorized fire alarm control panel for Robins AFB. This reduces costs in training personnel on how to repair multiple systems and allows for repair to be conducted by Government personnel.
- 5) If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources: Not Applicable.
- 6) An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys: Not Applicable.
- 7) If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes: No significant changes have resulted that would allow for full and open competition of the fire control panels.

Other facts: None known.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.



12. Fair and Reasonable Cost Determination and Contracting Officer Certification: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

This determination will be made using the following: ☒ cost analysis ☒ price analysis ☐ should cost ☐ IGCE ☐ audit: ☐ other:

As a part of this basis, certified cost, or pricing data:

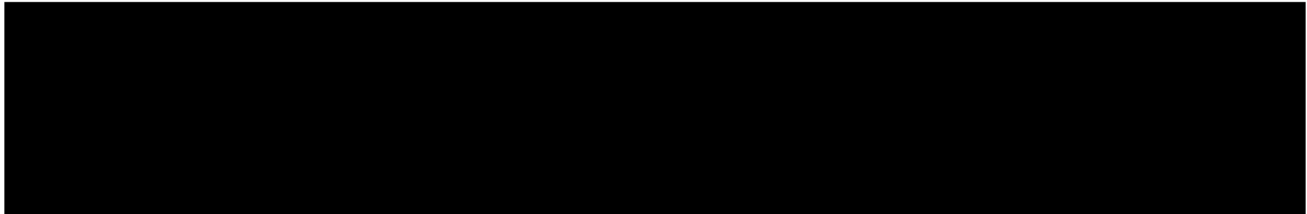
☐ will be required.

☒ will not be required and the following exception applies (FAR 15.403):

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- ☐ Prices that will be agreed upon are based on adequate price competition.
- ☐ Prices that will be agreed upon are based on prices set by law or regulation.
- ☒ A commercial item is being acquired.

I certify that this justification is accurate and complete to the best of my knowledge and belief.



13. Approval Signature Block:

Based on the foregoing justification, I hereby approve the procurement of Notifier fire alarm panel, for the estimated amount of [REDACTED] and the Johnson Controls Metasys BACnet DDC, for the estimated amount of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 U.S.C.3204(a)(1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements, Application for brand name requirement subject to availability of funds, and provided that the services or property herein described have otherwise been authorized for acquisition. This authority is applicable to brand name justification in accordance with (IAW) FAR 6.302(c)(1).

